

#	Case Name	Tentative
		A claim for punitive damages must be supported by specific factual allegations. The mere conclusory characterization of a defendant's conduct as "intentional, willful and fraudulent is a patently insufficient statement of 'oppression, fraud, or malice, express or implied, within the meaning of Civil Code section 3294.'" (<i>Brousseau v. Jarrett</i> (1977) 73 Cal.App.3d 864, 872.) Claims for punitive damages "must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious ... [p]unitive damages may not be pleaded generally." (<i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193.) Here, the FACC only asserts conclusory labels to support the claim for punitive damages. Cross-Complainant shall include specific facts that justify a claim for punitive damages if it elects to file a Second Amended Cross-Complaint. Cross-Defendant shall provide notice of this ruling.
58.	The People of the State of California v. Experian Data Corp. 2019-01047183	Defendant Experian Data Corp.'s motion to bifurcate issues at trial is DENIED. (Code Civ. Proc., §§ 597, 598, 1048, subd. (b).) Moving party has not presented sufficient evidence, as opposed to argument, showing that trying its statute of limitations defense first, will further convenience, avoid prejudice, or be conducive to expedition and economy. (Code Civ. Proc., §§ 597, 598, 1048, subd. (b); see also <i>Gilman v. Dalby</i> (2021) 61 Cal.App.5th 923, 940 ["statements in motions are not evidence"].) Plaintiff shall give notice of this ruling.
59.		
60.	Zamarron v. State of California 2023-01369253	<u>Motion for Leave to Amend</u> Plaintiffs Esmeralda Zamarron and Alejandro Flores Jr.'s motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048; accord, <i>S.C. v. Doe 1</i> (2025) 115 Cal.App.5th 365, 383.) Plaintiffs are ORDERED to separately file the proposed first amended complaint (Navarro Decl. at Ex. A) within two court